**WHITFIELD CARTER LLP**
Solicitors

22 Bishopsgate, London EC2N 4BQ · DX 138760 Cheapside · T +44 (0)20 7946 0521

**Strictly private and confidential — Letter before claim under the Practice Direction on Pre-Action Conduct**

Harburn Utilities plc

Harburn House, 5 Lochrin Square, Edinburgh EH3 9QA

For the attention of Mr Iain Sturrock, General Counsel

Our ref: SW/JO/CASP-204  By email and recorded delivery  16 October 2025

Dear Sirs

**Caspian Technologies Limited v Harburn Utilities plc — Master SaaS Agreement dated 4 March 2024**

We act for Caspian Technologies Limited ("our client"). This is a letter before claim sent in accordance with the Practice Direction on Pre-Action Conduct and Protocols. We invite you to treat it as such and to respond substantively within 14 days, by 30 October 2025.

The basis of the claim. By the Master SaaS Agreement dated 4 March 2024 (the "Agreement"), our client granted your company a three-year subscription to its CarbonLedger platform together with implementation and support services. The platform went live on 1 July 2024, following your acceptance of the Go-Live Acceptance Certificate, and was used extensively by your company thereafter.

Unpaid invoices. The following invoices fell due and remain unpaid: INV-2024-0733 (£60,000), INV-2025-0061 (£45,000), INV-2025-0218 (£24,000) and INV-2025-0412 (£540,000), totalling £669,000. These sums are due as a debt under clause 7.3 of the Agreement.

Wrongful termination. By your letter of 8 August 2025 your company purported to terminate the Agreement for alleged "persistent unavailability and data-integrity failures". That allegation is denied. The platform met or exceeded its 99.8% availability commitment in every month of operation, no service-credit claim was ever made, and no notice requiring the remedy of any breach was served as required by clause 14.2. The purported termination was a repudiation of the Agreement, which our client accepted by its letter of 1 September 2025.

Loss. Our client claims the £669,000 of unpaid invoices and, in addition, damages for the net subscription revenue lost over the remaining 19 months of the term, currently quantified at £744,300, together with contractual interest under clause 7.5.

Documents. We enclose copies of the Agreement, the Go-Live Acceptance Certificate, the monthly availability reports for July 2024 to June 2025, and the relevant invoices. We ask that, in accordance with the Practice Direction, you provide with your response copies of all documents on which you rely in support of the matters asserted in your letter of 8 August 2025.

ADR. Our client is willing to consider alternative dispute resolution, including mediation, and invites your proposals.

Response. Please respond substantively within 14 days. If we do not receive a satisfactory response, our client reserves the right to issue proceedings without further notice and to rely on this letter on the question of costs.

Yours faithfully

**Whitfield Carter LLP**

Confidential and may be legally privileged.